

NORTH CAROLINA

IREDELL COUNTY

KNOW ALL MEN BY THESE PRESENTS that James A. Brincefield and wife, Faye K. Brincefield are the owners of a certain tract of land known as BRIARCLIFF ACRES in Chambersburg Township, Iredell County, North Carolina, the title of same being recorded in Plat Book 21, Page 12; and whereas, James A. Brincefield and wife, Faye K. Brincefield desire to restrict the lots sold from said subdivision from and after the date of the filing of this instrument.

Now, therefore, James A. Brincefield and wife, Faye K. Brincefield for reasons herein set forth, do hereby covenant and agree to and with all persons, firms or corporations hereafter acquiring any of the property herein described that all of the lots are hereby subject to the following restrictions:

1. No lot shall be used except for residential purpose. No building shall be erected, altered, placed or permitted to remain on any lot other than one detached single family dwelling, not to exceed two stories in height, not including basement, and an attached garage for not less than two (2) cars.

2. No sign of any kind shall be displayed to the public view on any lot except a professional sign of not more than one foot square, real estate agent's FOR SALE signs of moderate size, or signs used by a builder to advertise the property during the construction and sales period.

3. No animals, livestock or poultry of any kind shall be raised, bred or kept on any lot in this subdivision, except that dogs, cats, and other accepted household pets may be kept, provided they are not kept, bred or maintained for any commercial purpose. Even accepted pets shall not be kept on any lot in sufficient numbers of in any such manner as the same shall constitute a nuisance to any other residents of this subdivision.

4. No lot shall be used or maintained as a dumping ground for rubbish, trash, garbage or other waste, nor shall waste be kept except in sanitary containers. All lots shall be maintained in a reasonable condition and appearance at all times, whether or not any dwelling has been constructed thereon. In the event such property is not maintained, and/or grass and weeds are not mown, any property owner has the right to clean and/or mow said property and charge the owner for cost of same.

5. No individual sewage shall be permitted on any lot unless such system is located, constructed and equipped in accordance with standards and requirements which are set by the duly constituted health authorities of the County of Iredell and the State of North Carolina. Approval of such system shall be obtained from the health authority having jurisdiction. No outside privies shall be installed in any event.

6. No one story dwelling shall be erected on any lot with less than 1,600 square feet of heated floor space, exclusive of porches and garages. Any one and one half or two story dwellings erected on any lot in the subdivision shall have at least 1300 square feet on the first floor exclusive of porches and garages. All construction on any lot in this subdivision shall comply with the zoning ordinances and regulations of Iredell County, North Carolina.

7. No dwelling shall be erected or placed on any lot of this subdivision having a width of less than 100 feet. Nothing stated in this restriction shall hinder or prevent the dividing of a lot so as to add to the frontage of another lot resulting in a larger building frontage than the restriction herein requires.

8. No building shall be located on any lot nearer to the street line than that indicated on the Subdivision Plat hereinbefore referred to, and no dwelling shall be located nearer the side lot lines, exclusive of street lines, than 10% of the mean width of the respective lots.

9. Each constructed residence shall have a concrete or asphalt driveway extending from the street into the garage portion of the residence.

10. No obnoxious or offensive activities shall be carried on upon any lot nor shall anything be done thereon which may be or may become an annoyance or nuisance to the neighborhood. No cycles, scooters or other vehicles that constitute a nuisance by creating loud noises shall be permitted.

11. No structure of a temporary character, trailer, basement, tent, shack, barn or other out buildings or garage apartment shall be used on any lot at any time as a residence, either temporarily or permanently except such garage apartment as may be used as servant's quarters. Nor shall mobile homes or other manufactured or log homes be placed on any lot at any time.

12. These restrictions shall run with the land and shall be binding on all parties and all persons claiming under them for a period of twenty-five (25) years from the date these covenants are recorded, after which time said covenants shall be automatically extended for successive periods of ten years, unless an instrument signed by a majority of the then owners of the lots has been recorded, agreeing to change such covenants in whole or in part.

13. Enforcement shall be by proceedings at law or in equity by the grantors or either of them or by any property owner against any person or persons violating or attempting to violate any covenant either to restrain violation or to recover damages or both.

14. Invalidation of any one of these covenants by judgment, court order, or otherwise, shall in no wise affect any of the other provisions which shall remain in full force and effect.

15. No disabled or inoperable motor vehicle may be kept, stored or repaired on any lot in the subdivision. No double axle trucks shall be parked in the subdivision.

IN WITNESS WHEREOF, James A. Brincefield and wife, Faye K. Brincefield have set their hands and seals this 29th day of September, 1989.

James A. Brincefield (SEAL)
James A. Brincefield

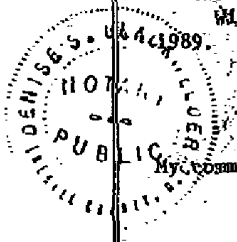
Faye K. Brincefield (SEAL)
Faye K. Brincefield

NORTH CAROLINA
IREDELL COUNTY

I, a Notary Public of the State and County aforesaid, certify that James A. Brincefield and wife, Faye K. Brincefield, personally appeared before me this day and acknowledged the due execution of the foregoing instrument for the purposes therein expressed.

Witness my hand and notarial seal, this 29th day of September,

Denise S. Blackwelder
Notary Public



My commission expires: 4-29-94

STATE OF NORTH CAROLINA -- Iredell County

The foregoing certificate (s) of

Denise S. Blackwelder,
a notary public of Iredell County NC.

is (are) certified to be correct. This instrument was presented for registration this day and hour and duly recorded in the office of the Register of Deeds of Iredell County, North Carolina in Book 792, Page 138.

This 29 day of September, A.D., 19 89 at 4:27 o'clock P.M.

L L Nesbit
REGISTER OF DEEDS

By: Imogene W. Blankenship
Deputy Register of Deeds